

Annex A

RCIC-IRB responsibilities for SPOUSAL OPEN WORK PERMIT APPLICATION (SOWP) are as follows:

1. Assess Eligibility

The RCIC-IRB assesses the Client's eligibility for a SOWP based on the documentation and information provided by the Client in accordance with the checklist and questionnaire prepared by the RCIC IRB, while identifying any eligibility, past immigration history, admissibility, or compliance concerns that may affect the application. Verify the principal applicant's valid work or study permit, occupation or program eligibility, and compliance with permit conditions. Review the spousal or common-law relationship to ensure it meets IRCC criteria.

2. Provide Legal and Procedural Guidance

The RCIC provides clear legal and procedural guidance to the Client regarding the relevant immigration program, explaining eligibility requirements, documentation obligations, processing timelines, and IRCC discretion. The RCIC advises on the type and format of supporting evidence required, identifies gaps or weaknesses in the submitted documents, and recommends additional information to strengthen the application. The RCIC also informs the Client of their rights, responsibilities, and potential risks associated with the application, including the implications of refusals, delays, non-compliance, or misrepresentation, ensuring the Client understands the process and can make informed decisions.

3. Prepare and Submit the Application

The RCIC-IRB completes all required IRCC forms, ensures that all forms are properly filled, signed, and compliant with IRCC requirements, prepares personal statements, affidavits, or explanations when necessary, drafts a professional submission letter (if applicable) outlining the case, uploads all forms and supporting documents to the IRCC portal, and ensures the application is submitted correctly and within prescribed timelines. Pay applicable government fees on behalf of the Client, where authorized and reimbursed.

4. Monitor and Communicate with IRCC

The RCIC-IRB tracks the status of the application, provides timely information related to the progress of the Client's case, and promptly forwards all updates, document requests, or instructions received from IRCC to the Client and respond on their behalf in consultation with the Clients.

5. Representation Until Final Decision

The RCIC-IRB acts as the Client's authorized representative before IRCC, communicates on behalf of the Client with relevant authorities as required, and advises the Client on next steps in the event of delays, additional requirements, or upon issuance of a final decision. Explain available options if refused (reconsideration or new application- subject to a new retainer and fees).

6. Professional Conduct and Compliance

Provide services with honesty, integrity, competence, and in the Client's best interest.

Comply fully with all requirements of the IRPA, IRPR, and the College of Immigration and Citizenship Consultants (CICC) Code of Professional Conduct.